



# **MEMORANDUM OF UNDERSTANDING**

**Between**

**ODOP Cell**

**and**

**ES Online Services (India) Pvt. Ltd. (an eBay Group Company)**

This Memorandum of Understanding (this “**MoU**”) is entered into on August \_\_\_\_, 2020 by and between:

- (1) **One District One Product Cell**, a nodal body for the implementation of the One District, One Program (“**ODOP Program**”), under Directorate of Industries, Government of U.P. and having its office at First Floor, Niryat Bhawan, 8 Cantt Road, Qiserbagh, Lucknow – 226001, Uttar Pradesh, India (“**ODOP Cell**”)
- (2) **ES Online Services (India) Private Limited**, a company registered under the provisions of Companies Act, 2013 and having its registered office at 14<sup>th</sup> Floor, North Block, R-tech Park, Western Express Highway, Goregaon East, Mumbai – 400063, India (“**ES Online**”);

ODOP Cell and Counterparty may hereinafter be referred to as a “**Party**” and collectively, the “**Parties**”.

- A. ES Online is in the business of providing a range of consultancy, marketing and support services, and is a part of the group companies of eBay Inc. (“**eBay**”).
- B. eBay and its Affiliates own and/or operate the eBay Sites as an intermediary which displays listings and other data and contents provided, created and originated by independent registered users and independent third parties. eBay does not own, stock, sell, distribute or in any manner come into possession of or verify any items/products listed or put up for sale on the eBay Sites.
- C. With the objective of providing support services to promote the business interests of eBay, ES Online desire to collaborate with ODOP Cell (as defined hereinafter).
- D. The Government of Uttar Pradesh's ODOP Program aims to encourage such indigenous and specialized products and crafts. The main objectives of the ODOP Program of Uttar Pradesh include preservation and development of local crafts / skills and promotion of the art, increase in the incomes and local employment and improvement in product quality and skill development.
- E. ODOP Cell wishes to engage eBay / ES Online for offering export opportunities for ODOP artisans, traders, and manufactures through eBay's global marketplace and ES Online agrees to the engagement as from the Effective Date as of the date mentioned above, subject to the terms and conditions set out herein this MOU.

## 1. **POTENTIAL COLLABORATION**

The Parties agree to enter into discussion to evaluate and explore various potential business collaborations in connection with facilitating MSMEs under ODOP Program to start and expand their online export business (the “**Collaboration**”) and:

- (a) eBay to offer curated and special schemes (pricing and other benefits), tailored for the ODOP Cell, to enable the MSMEs under ODOP to have access to international buyers through its e-commerce platforms including [www.ebay.com](http://www.ebay.com) (“**eBay Platform**”).
- (b) eBay to conduct trainings and workshops for MSMEs in the pre-decided districts, facilitated by the ODOP Cell where ODOP Cell shall, at its cost and expenses, arrange all the necessary infrastructure in respective districts.
- (c) eBay, itself or through its service providers, will assist ODOP MSMEs with the process of signing-up on the eBay Platform and provide handholding through onboarding procedures and getting their account activated.
- (d) eBay shall not charge any onboarding fees and shall offer financial discounts and other special packages to ODOP artisans / traders / manufacturers for first two months from the date of registration/signing-up on the eBay Platform.
- (e) eBay shall make reasonable efforts to participate in ODOP State / Regional Summits or any other media event facilitated and advised by the ODOP Cell.





- (f) eBay to invite ODOP MSMEs to appropriate national and international events and forums to enhance exposure and offer visibility of such ODOP MSMEs.
- (g) eBay to offer relevant ODOP branding and success stories of ODOP MSMEs on its various social media platforms.
- (h) ODOP Cell to facilitate and ensure that the benefits of UP Government's ODOP MDA Scheme are extended and provided to eBay's prospective sellers under ODOP Program.
- (i) Both parties will share progress reports on monthly basis.
- (j) Both parties to have quarterly/half yearly meetings to review the success of trainings, seminars and workshops conducted by eBay.
- (k) ODOP Website to have a direct link for MSMEs to reach eBay Platform/website.
- (l) eBay to take care of adequate publicity of the news of this MoU signing event.
- (m) ODOP MSMEs to keep key words and listings updated, for an easy search of ODOP listed products.
- (n) ODOP MSMEs to mandatorily have the word 'ODOP' in their listing description on eBay Platform.
- (o) ODOP MSMEs to mandatorily include 'a brief about ODOP Program' while creating the listings of their products on eBay Platform enabling their global buyers to know about ODOP Program.
- (p) eBay shall provide ODOP Product promotion through relevant media, both online and offline, as per mutual understanding of the parties. Example: Online banners (Online – Pop-up adds or banners on websites; Offline – In print media).
- (q) eBay shall offer a dedicated property on our India page: <http://sellglobal.ebay.in/>, an eBay Indian sellers (both new and existing) community page. This page shall be promoted by both parties mutually.

## 2. **NON-BINDING**

The Parties acknowledge and agree that, save for this Clause, Clauses 3 (Confidentiality), 4 (Publicity), 5 (Intellectual Property), 6 (Term and Termination), 7 (Counterparts) and 8 (Third Party Rights), this MoU is not intended to be legally binding but sets out the understandings reached by the Parties with respect to the Collaboration set forth in Clause 1 (Potential Collaboration). The understandings reached by the Parties in this MoU shall comprise only a general scope of rights and obligations of each Party and the specific scope, initiatives, terms and conditions, and deliverables of the collaboration shall be further discussed, agreed and confirmed by the Parties by way of definitive or supplemental agreement(s) superseding this MoU.

## 3. **CONFIDENTIALITY**

"**Confidential Information**" means the terms of this MoU and all information concerning the Parties or any Party to which another Party is provided access by virtue of its activities as a result of this MoU. Confidential Information does not include information that has been publicly disseminated in writing by the owner, in which the receiving Party can show it knew prior to disclosure, or which was rightfully received by a Party from a third Party without restriction. Confidential Information acquired hereunder by a Party will be treated as proprietary information of the disclosing Party and shall not be used for any purpose other than the collaborations between the Parties or disclosed to any third Party, except such Party's professional advisers, affiliates, consultants, or its employees on a "need to know" basis. No Party shall, without the prior written consent of the disclosing Party, make any public announcement or issue any press release disclosing Confidential Information, provided that any Party may make any disclosure required, in the opinion of its legal counsel, by applicable laws or regulations.



**4. PUBLICITY**

The Parties agree that, unless expressly agreed to and approved in advance by both Parties, no Party shall make any public announcements or press releases with respect to the relationship or collaboration between the Parties created by this MoU.

**5. INTELLECTUAL PROPERTY**

Nothing contained in this MoU shall be construed as granting or conferring, whether by sale, license or otherwise, to a Party (or any of its representatives) any right, title or interest in or to Intellectual Property Rights of the other Party or its affiliates, related parties or licensors. For the purpose of this MoU, "Intellectual Property Rights" shall mean all rights in inventions, patents, trademarks, service marks, trade names, copyrights, data rights, database rights, design rights, domain names, trade secrets, know-how and other intellectual property rights (whether registered or unregistered) and all applications for any of them, anywhere in the world.

**6. TERM AND TERMINATION**

- 6.1. The Parties agree that this MoU can be terminated on the ground of non-execution by any Party or by mutual consent.
- 6.2. Subject to earlier termination in accordance with Clause 6.1, this MoU shall take effect from the date first above written and remain valid for (a) one (1) year, or (b) until the date the Parties have entered into the relevant definitive agreement(s) which supersedes this MoU (which, in the case of eBay, may be executed by eBay or its relevant affiliate and/or parent company(ies)), whichever the earlier.

**7. COUNTERPARTS**

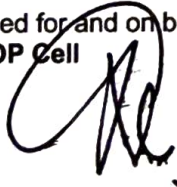
This MoU may be signed in counterparts, each of which shall be deemed an original and all of which shall constitute one and the same instrument. This MoU may also be signed and transmitted by e-mail, as a scanned image or PDF, with such signature to be treated as an original and the document transmitted to be considered to have the same binding effect as an original signature on an original document.

**8. NO THIRD-PARTY RIGHTS**

Nothing in this MoU, express or implied, is intended to confer upon any person, other than the Parties hereto and their respective successors and assigns, any rights or remedies under or by reason of this MoU, except that the Parties agree that in the event of any enforcement of its rights under this MoU by eBay, such action may be instituted by eBay and/or its affiliates on its behalf.

**IN WITNESS** whereof, the Parties below have executed this MoU on the aforementioned day and year.

Signed for and on behalf of  
ODOP Cell



Name:  
Title:  
Date:

Signed for and on behalf of  
ES Online Services (India) Private Limited



Name: Vidmay Naini  
Title: Director, India Country Manager  
Date: July 31, 2020